

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

CORY J. BENNETT, Plaintiff,

Civil Action No. 1:26-cv-01601-RP-DH

v.

**THE UNIVERSITY OF TEXAS AT
AUSTIN; EMILY HSIAO; JAMES G.
SCOTT; SALLY K. RAGSDALE; JAY
BARTROFF; KELLI BRADLEY; and
JEFF GRAVES**, Defendants.

**PLAINTIFF’S EMERGENCY MOTION TO EXPEDITE DISPOSITION OF
IFP APPLICATION (DKT. 3) AND SUMMONS MOTION (DKT. 10)**

Plaintiff Cory J. Bennett respectfully moves for expedited disposition of his Application to Proceed in Forma Pauperis, Dkt. 3, and Motion for Order Directing Issuance of Summonses and Pro Se Electronic-Filing Instructions, Dkt. 10. A ruling on those motions is needed before summonses can issue and Defendants can receive the notice required for Plaintiff to renew his preliminary-injunction motion. That motion seeks relief under the Americans with Disabilities Act and Section 504 of the Rehabilitation Act concerning who at UT Austin will make the disability-accommodation and enrollment decisions Plaintiff needs for Fall 2026. The remaining service and briefing process will require time before the university’s registration and add deadlines. Plaintiff therefore requests prompt disposition of Dkts. 3 and 10.

Background

Plaintiff submitted the complaint, IFP application, and proposed summonses on June 12, 2026. The IFP application was entered as Document 3 on June 23. The Court’s June 26 order restricted access to the unredacted affidavit but did not decide the application.

The Court denied Plaintiff’s preliminary-injunction motion, Dkt. 8, on July 2 because Plaintiff had not shown that Defendants received notice of the motion or lawsuit. Plaintiff

then submitted Dkt. 10, which asks the Court to direct issuance of the proposed summonses or identify any remaining step Plaintiff must complete. The Clerk entered Dkt. 10 on July 6.

On July 7, the Court stated that Plaintiff may refile his preliminary-injunction motion after giving notice to the opposing parties and may then request an expedited briefing schedule. The Court separately referred Dkt. 10 to United States Magistrate Judge Dustin Howell. No summons has issued, and Dkts. 3 and 10 remain pending.

Expedited Consideration

Under 28 U.S.C. §1915(a)(1), the Court may allow an action to proceed without prepayment of fees when the required affidavit establishes inability to pay. Section 1915(e)(2) requires dismissal if a statutory ground applies. Plaintiff asks the Court to decide his IFP application and complete any review the Court determines must precede service.

The complaint asserts claims under the Americans with Disabilities Act and Section 504 of the Rehabilitation Act, and Dkt. 8 seeks preliminary relief on those claims. Plaintiff maintains that the complaint plausibly states at least one claim supporting that relief. If the Court permits such a claim to proceed after review under §1915(e)(2), process may issue and the Court may consider a renewed preliminary-injunction motion after Defendants receive notice.

If the Court grants IFP status and permits any claim to proceed, 28 U.S.C. §1915(d) directs court officers to issue and serve process, and Federal Rule of Civil Procedure 4(c)(3) requires the Court to order service. Rule 4(b), also cited in Dkt. 10, requires the Clerk to sign, seal, and issue a properly completed summons presented after the complaint is filed.

Formal service cannot begin until the Court decides the IFP application and summonses issue. The summonses must then be served before Plaintiff can renew his motion and the parties can brief it.

Dkt. 8 asks that officials who were not involved in the events described in the complaint make Plaintiff's Fall 2026 disability-accommodation and enrollment decisions. UT Austin's

general registration runs from August 20 through 27, classes begin August 24, and the undergraduate add deadline is August 31. Dkt. 8 at 2. Because service and briefing must occur before the Court can consider a renewed motion, continued delay in resolving Dkts. 3 and 10 may limit the relief available before those university deadlines.

An expedited ruling would allow service and briefing to begin while Fall 2026 relief can still be considered, with full statutory review and time for Defendants to receive notice and respond.

Relief Requested

Plaintiff respectfully requests that the Court decide Dkts. 3 and 10, complete any review that must precede service, and identify anything else Plaintiff must provide. If the Court grants IFP status and permits any claim to proceed, Plaintiff asks the Court to direct issuance and service of the proposed summonses under 28 U.S.C. §1915(d) and Federal Rule of Civil Procedure 4(c)(3). Plaintiff also asks the Court to extend the Rule 4(m) service period to account for the time Dkts. 3 and 10 remained pending and to grant any other appropriate relief.

No Defendant has appeared, no opposing counsel is of record, and no summons has issued. Because no opposing counsel is available, Plaintiff could not confer about this motion and does not characterize it as unopposed.

Respectfully submitted,

Dated: July 16, 2026



Cory J. Bennett, Plaintiff Pro Se
Mailing Address: 6705 W Highway 290
Ste 607 PMB #268
City/State/ZIP: Austin, TX 78735-8407
Telephone: (512) 630-5607
Fax: None
Email: csquaredbennett@gmail.com